

**Second Regular Session
Seventy-fifth General Assembly
STATE OF COLORADO**

REREVISED

*This Version Includes All Amendments
Adopted in the Second House*

LLS NO. 26-0189.01 Stephanie Schrab x4330

SENATE BILL 26-059

SENATE SPONSORSHIP

Cutter and Ball, Coleman, Exum, Gonzales J., Hinrichsen, Jodeh, Kipp, Lindstedt, Wallace, Weissman

HOUSE SPONSORSHIP

Lindsay, Nguyen

Senate Committees

State, Veterans, & Military Affairs

House Committees

State, Civic, Military, & Veterans Affairs

HOUSE
3rd Reading Unamended
April 22, 2026

A BILL FOR AN ACT

101 **CONCERNING A PROHIBITION ON A MEMBER _____ OF THE GENERAL**
102 **ASSEMBLY HOLDING MULTIPLE ELECTED OFFICES.**

HOUSE
2nd Reading Unamended
April 20, 2026

Bill Summary

(Note: This summary applies to this bill as introduced and does not reflect any amendments that may be subsequently adopted. If this bill passes third reading in the house of introduction, a bill summary that applies to the reengrossed version of this bill will be available at <http://leg.colorado.gov>.)

The bill prohibits a member or member-elect of the general assembly from holding any other elected offices while serving as a member of the general assembly or while a member-elect of the general assembly.

SENATE
3rd Reading Unamended
March 3, 2026

SENATE
Amended 2nd Reading
March 2, 2026

Shading denotes HOUSE amendment. Double underlining denotes SENATE amendment.
Capital letters or bold & italic numbers indicate new material to be added to existing law.
Dashes through the words or numbers indicate deletions from existing law.

1 *Be it enacted by the General Assembly of the State of Colorado:*

2 **SECTION 1.** In Colorado Revised Statutes, **add** 2-2-328 as
3 follows:

4 **2-2-328. Members of the general assembly prohibited from**
5 **holding multiple elected offices.**

6 (1) COMMENCING WITH THE FIRST REGULAR SESSION OF THE
7 SEVENTY-SIXTH GENERAL ASSEMBLY, AND DURING EACH REGULAR
8 SESSION THEREAFTER, EXCEPT AS PROVIDED IN SUBSECTION (2) OF THIS
9 SECTION, A MEMBER OF THE GENERAL ASSEMBLY SHALL NOT HOLD ANY
10 OTHER ELECTED OFFICE WHILE SERVING AS A MEMBER OF THE GENERAL
11 ASSEMBLY. THIS SECTION APPLIES TO A MEMBER OF THE GENERAL
12 ASSEMBLY UPON TAKING THE OATH OF OFFICE OF THE GENERAL ASSEMBLY
13 AS REQUIRED BY SECTION 2 (2) OF ARTICLE V OF THE STATE
14 CONSTITUTION.

15 (2) THE PROVISIONS OF SUBSECTION (1) OF THIS SECTION DO NOT
16 APPLY IF:

17 (a) THE MEMBER OF THE GENERAL ASSEMBLY HOLDS A SPECIAL
18 DISTRICT ELECTED OFFICE;

19 (b) THE MEMBER OF THE GENERAL ASSEMBLY HAS LESS THAN ONE
20 YEAR REMAINING IN THEIR TERM IN ANOTHER ELECTED OFFICE AT THE
21 TIME THE MEMBER TAKES THE OATH OF OFFICE OF THE GENERAL
22 ASSEMBLY AS REQUIRED BY SECTION 2 (2) OF ARTICLE V OF THE STATE
23 CONSTITUTION;

24 (c) THE MEMBER OF THE GENERAL ASSEMBLY HAS LESS THAN ONE
25 YEAR REMAINING IN THEIR TERM IN THE GENERAL ASSEMBLY AT THE TIME
26 THE MEMBER TAKES THE OATH OF OFFICE OF ANOTHER ELECTED OFFICE;
27 OR

1 (d) THE MEMBER OF THE GENERAL ASSEMBLY IS A SENATOR WHO
2 IS IN THE MIDDLE OF THEIR TERM AT THE BEGINNING OF THE FIRST
3 REGULAR SESSION OF THE SEVENTY-SIXTH GENERAL ASSEMBLY.

4 **SECTION 2. Safety clause.** The general assembly finds,
5 determines, and declares that this act is necessary for the immediate
6 preservation of the public peace, health, or safety or for appropriations for
7 the support and maintenance of the departments of the state and state
8 institutions.